

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----
AARON SUMMERLIN,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICER OTTO PEREIRA, AND
SERGEANT MATTHEW BARBER,Defendants.
-----**SUMMONS**

Index No.: _____

Plaintiff designates
Queens County
as the place of trialThe basis of venue is based on
CPLR § 504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
July 27, 2022/s/ Jessica GormanJessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
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New York, New York 10004
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Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

POLICE OFFICER OTTO PEREIRA, 114TH PRECINCT, 34-16 ASTORIA BOULEVARD,
QUEENS, NY 11103

SERGEANT MATTHEW BARBER, 114TH PRECINCT, 34-16 ASTORIA BOULEVARD,
QUEENS, NY 11103

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-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICER OTTO PEREIRA, AND
SERGEANT MATTHEW BARBER,Defendants.
-----**VERIFIED COMPLAINT****JURY TRIAL
DEMANDED**

Index No.: _____

AARON SUMMERLIN, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE OFFICER OTTO PEREIRA, AND SERGEANT MATTHEW BARBER, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

TIMELINESS AND NOTICE OF CLAIM

3. Plaintiff filed a Notice of Claim in accordance with General Municipal Law Section 50-e and 50-I on or about September 21, 2019. The Notice of Claim set forth the name and address of Plaintiff and his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

4. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

5. A General Municipal Law Section 50-h hearing was held on or about November 30, 2021.

6. The claims in this action are being timely commenced from when they accrued and with any applicable consideration of the toll by Governor Cuomo and filing suspension by Hon. Marks.

7. Plaintiff has complied with all conditions precedent to maintain this action.

8. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

PARTIES

9. At all relevant times, Plaintiff resided in Kings County and at Riker's Island in Bronx County, City and State of New York. He currently resides in Queens County.

10. At all relevant times, Defendant CITY OF NEW YORK was a municipal corporation incorporated and existing under the laws of the State of New York, which operated, controlled, and managed Defendant NYPD.

11. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT was and is an agency of Defendant City, and directly supervised the individually named Defendants.

12. Upon information and belief, at all relevant times, Defendant OTTO PEREIRA was a Detective with the New York City Police Department, believed to be working out of the 114th precinct.

13. Upon information and belief, at all relevant times, Defendant SERGEANT MATTHEW BARBER was a Sergeant with the New York City Police Department, believed to be working out of the 114th precinct.

14. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

15. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

16. At about noon on January 7, 2021, the Plaintiff, Aaron Summerlin, was wrongfully arrested at or near the 114th precinct in Astoria Queens, New York.

17. Mr. Summerlin learned that there was a warrant or an I-card for him and made arrangements to voluntarily go to the precinct on January 7.

18. When he arrived, he learned from Defendant Detective Otto Pereira that he was one of the suspects in a robbery and assault that happened in Queens in October 2020.

19. Upon information and belief, at the time of the robbery, Mr. Summerlin had not been to Queens in several years. He also had an alibi, and people who could vouch for that alibi. There were also serious issues with the alleged victims' stories and their actions after that should

have given pause to the police, including among other things the fact that neither identified Mr. Summerlin.

20. Upon information and belief, there was no legitimate or reasonable information or evidence that Mr. Summerlin committed the crime, and there was no probable or sufficient legal cause to arrest and charge him for it.

21. Defendant Pereira nonetheless arrested, charged, and caused the prosecution of Mr. Summerlin with two counts of first degree robbery and one count of criminal possession of a firearm; violent felonies; and misdemeanor charges, for the crime.

22. Upon information and belief, Defendant Sergeant Matthew Barber signed off on and approved the arrest, charges, and prosecution.

23. Mr. Summerlin was eventually brought to central booking, then arraigned on January 8, 2021. He was released on his own recognizance.

24. The misdemeanor charges were ultimately dismissed and terminated in Mr. Summerlin's favor on April 30, 2021. Upon information and belief, the felony charges were also dismissed in his favor on or around the same date.

25. As a result of the false arrest and charges, Mr. Summerlin was initially detained for about 20 hours.

26. However, Mr. Summerlin was on parole at the time. Although he was not initially violated for these charges, he was ultimately held on a parole warrant lodged for these charges and other false charges which were later dismissed (and is the subject of his other case filed in this Court). He was incarcerated on the parole hold at Riker's from March 23, 2021 until July 19, 2021 when the parole hold was lifted.

27. The hold was lifted when the administrative law judge found no credible evidence

to sustain the charges against him, including no evidence that he was involved in the robbery.

28. By the time he was released from Riker's, Mr. Summerlin had spent 188 incarcerated for crimes he did not commit. He got covid during his incarceration, and his anxiety, which has been under control, was exacerbated and he started having panic attacks.

29. He also lived under the cloud of being accused of and prosecuted for crimes he did not commit, including a violent felony that carried years in prison.

30. Mr. Summerlin had out of pocket costs from his incarceration, including costs for commissary. And he lost valuable personal property. While he was being processed on this arrest at the station, his personal property, including a valuable belt and a watch, were removed. Those items and the rest of his property were apparently lost and Mr. Summerlin never got them back.

31. His relationships with his then-fiancee and his son also became strained. His fiancée left him and his son would no longer spend weekends with him as he had previously.

32. The 114th precinct has a documented history of substantiated charges of civil rights violations. In the last two decades, charges have been substantiated against 32 different officers for violations including abuse of authority, unlawful searches of premises and of people, excessive force, forcible removal to a hospital, refusing to take complaints, refusing to provide shield numbers, refusal to provide medical treatment, property damage, unlawful frisks, unlawful stops, unlawful threats of force, unlawful threats of arrest, and issuing retaliatory summonses.

33. The majority of these charges were in the last decade, including all but one of those against supervisors.

34. Eight of these substantiated complaints were made of supervisors, including Sergeants and a Lieutenant.

35. Upon information and belief, Defendant Pereira also has a substantiated charge

against him for abusing his authority and conducting an illegal car search in 2013.

36. A brief search online search also shows at least three lawsuits filed in federal court against officers in the 114th precinct in just a few recent years. These include the following:

- a. Diaz v. City of New York, EDNY 15-cv-01842, for unlawful stop and search, false arrest and imprisonment, failure to intervene
- b. Jokic v. City of New York et al., 18-cv-02899, for false arrest and imprisonment and excessive force
- c. Taylor v. Matat et al., EDNY 15-cv-04205, for unlawful stop and search, excessive force, malicious prosecution

37. Defendant Barber has been a defendant in at least two lawsuits accusing him of violating civil rights:

- a. Melendez v. City of New York, et al., SDNY 14-cv-00526
- b. Hines v. City of New York, et al., Supreme Court Queens, 707526/2018

CAUSES OF ACTION

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS MALICIOUS PROSECUTION

38. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

39. As set forth above, Defendants Pereira and Barber knowingly and intentionally caused Mr. Summerlin to be prosecuted on two violent felonies and several misdemeanor charges. They caused this prosecution without probable cause and without legal justification, and even though the evidence did not point to Mr. Summerlin as a perpetrator.

40. The misdemeanor charges were dismissed and terminated in his favor on April 30, 2021. Upon information and belief, the felony charges were also dismissed in his favor on or around the same date.

41. Mr. Summerlin's prosecution violated his rights, and as a direct and proximate result, he has been irreparably injured.

42. Defendants NYPD and City are also responsible and liable for the acts of the individual Defendants done within the scope of their employment and under the doctrine of *respondeat superior*.

**SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

43. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

44. As set forth above, there was no apparent lawful basis to prosecute Mr. Summerlin for these crimes. The actions of Defendants Pereira and Barber were extreme and outrageous, exceeded the bounds tolerated by a civil society, were done with a disregard for the substantial likelihood of causing severe emotional distress to Plaintiff, caused Plaintiff to fear for his safety, and injured him by exacerbating his anxiety, producing panic attacks, and harming his relationships with his fiancée and son.

45. These acts and omissions violated Mr. Summerlin's rights, and as a direct and proximate result, he has been irreparably injured.

46. Defendants NYPD and City are responsible and liable for the acts of Defendants Pereira and Barber for acts committed in the scope of their employment under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS NYPD AND CITY
NEGLIGENT HIRING/TRAINING/RETENTION/SUPERVISION

47. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

48. As set forth above, Defendants Pereira and Barber violated Mr. Summerlin's rights when they caused him to be prosecuted without probable cause and for crimes he did not commit.

49. Upon information and belief, the NYPD and the City knew or should have known of the propensity of Defendants Pereira and Barber to commit injurious acts, including violating the rights of citizens like the Plaintiff.

50. The NYPD and City were negligent in failing to properly train and supervise its employees, specifically including Defendants Pereira and Barber.

51. Defendants NYPD and the City failed to exercise reasonable care in hiring, training, retaining, and supervising Defendants Pereira and Barber; thereby breaching their duty to the public and to Plaintiff to exercise reasonable care in hiring, training, retaining, and supervising employees.

52. Defendants NYPD and City are responsible and liable for the acts of Defendant Pereira and Barber for acts committed in the scope of their employment under the doctrine of *respondeat superior*.

53. These acts, as set forth above, violated Mr. Summerlin's rights, and as a direct and proximate result, he has been irreparably injured.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
NEGLIGENCE/GROSS NEGLIGENCE

54. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

55. Defendants' actions and omissions in causing Mr. Summerlin's malicious prosecution, negligent infliction of emotional distress, and negligent hiring/training/supervision/retention breached the duty of care owed to him.

56. Defendants Pereira and Barber acted negligently and in disregard for the procedures, safeguards, and laws that exist to protect citizens from malicious prosecutions by causing his prosecution without probable or sufficient legal cause. They did so by initially causing his prosecution, and by allowing it to continue despite the lack of evidence tying him to the crimes.

57. These acts, as set forth above, violated Mr. Summerlin's rights, and as a direct and proximate result, he has been irreparably injured.

58. Defendants NYPD and City are responsible and liable for the acts of Defendant Pereira and Barber for acts committed in the scope of their employment under the doctrine of *respondeat superior*.

FEDERAL LAW CLAIMS

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS PEREIRA AND BARBER PURSUANT TO 42 U.S.C. § 1983 FALSE ARREST

59. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

60. As set forth above, these Defendants arrested, held, and charged Mr. Summerlin without probable cause for crimes he did not commit.

61. There was no apparent reasonable information or evidence that Mr. Summerlin committed the crime, and no probable or sufficient legal cause to arrest and charge him for it.

62. This violated his constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SIXTH CAUSE OF ACTION AGAINST DEFENDANTS PEREIRA AND BARKER
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION

63. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

64. As set forth above, these Defendants knowingly and intentionally caused Mr. Summerlin to be prosecuted on two violent felonies and several misdemeanor charges. They caused this prosecution without probable cause and without legal justification.

65. He lived under the cloud of suspicion until the misdemeanor charged were dismissed and terminated in his favor on April 30, 2021. Upon information and belief, the felony charges were also dismissed in his favor on or around the same date.

66. This prosecution violated his constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS NYPD AND CITY OF NEW
YORK
PURSUANT TO 42 U.S.C. § 1983
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

67. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

68. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the police department on a variety of subjects including detentions and arrests, searches and seizures, prosecution, and other areas of importance to the Constitutional rights of citizens.

69. In the alternative, and upon information and belief, the City and Police Department have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens by failing or refusing to enforce them.

70. Upon information and belief, the City and Police Department have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens.

71. As set forth above, Defendants Pereira and Barber knowingly and intentionally arrested and charged Mr. Summerlin, then caused him to be prosecuted without probable cause, without legal justification, and on false charges.

72. Upon information and belief, these Defendants took these actions with the knowledge and implicit approval of their supervisors, who would have had to review and sign off on the arrest and charges.

73. Incidents like these are part of a larger pattern and practice in the 114th precinct, and in the NYPD as a whole. As set forth above, the 114th precinct has a history of dozens of police officers violating citizens' rights. Not only have supervisors in the precinct participated in these violations, but upon information and belief, higher-ups in the NYPD and in the City have turned a blind eye to these violations, thereby allowing them to continue.

74. In light of the substantiated charges and successful lawsuits brought against multiple officers in the 114th precinct, including against Defendants Pereira and Barber

specifically, higher-ups had to know what was happening. Higher ups either failed to more closely examine the Defendant officers' actions with regard to Mr. Summerlin or they turned a blind eye to their violations. They did this despite the fact that serious questions should have been raised.

75. They also failed to more closely supervise or monitor these officers or to provide extra training or take any other remedial or preventative steps to ensure they acted in compliance with the law.

76. The violations against Mr. Summerlin occurred in accordance with these very practices policies, and customs, through the City and the Police Department's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individually named Defendants here.

77. These actions and inactions violated Mr. Summerlin's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

DEMAND FOR JURY TRIAL

78. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;

- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Albany, New York
July 27, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
AARON SUMMERLIN
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New York, New York 10004
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ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York
July 27, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.